

Section Title: Terms and Conditions
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The following are NVIDIA's terms and conditions ("Terms and Conditions") for its NVIDIA Sales Rewards Program (the "Rewards Program"). Your and your company's participation in the Rewards Program are subject to these Terms and Conditions (as amended from time to time) to the exclusion of all other terms and conditions. NVIDIA reserves the right to modify the Terms and Conditions from time to time and to terminate the Rewards Program in its entirety, without any liability whatsoever, with or without notice to you or to your company.

1) Overview of Rewards Program

The Rewards Program is a monthly sales incentive program offered to sales representatives from participating distributors in the United States and Canada ("Eligible Participants"). Persons enrolling in the Rewards Program ("Participants") will receive a per unit sales incentive credit amount for selling eligible models of GPUs and motherboards ("Eligible Products") from NVIDIA Authorized Board Partners ("Partners"). NVIDIA reserves the right to add or remove Partners at any time, and for any reason.

Monthly rewards payouts ("Rewards Credits") are based on point-of-sale reporting provided by each participating Partner and will be paid to enrolled Participants via a credit loaded on a Visa debit card ("Rewards Card") administered by Citi Prepaid Services.

Please refer to www.nvidia.com/rewards or email rewards@nvidia.com for a list of Partners.

2) Point-of-Sale Calculation

Partner point-of-sale data is required to calculate monthly credits for Participants. Partners who fail to provide weekly and accurate point-of-sale reports to NVIDIA and/or InfoNow may be terminated from the Rewards Program. Reporting must identify individual or team members attributed to each purchase of Eligible Product from Partners. NVIDIA is not liable for incorrect Rewards Credit payment amounts due to missing and/or incomplete point-of-sale-data.

3) Participant Enrollment

Participants must enroll in the Rewards Program by completing a Rewards Program application form available online at www.nvidia.com/rewards. Enrollment in the Rewards Program constitutes the Participant's acceptance of these Terms and Conditions. Incomplete applications will not be accepted. Social Security Number or equivalent Tax ID Number is required for tax purposes. All information supplied in the Rewards Program application is subject to NVIDIA's privacy policy, which you may read at: http://www.nvidia.com/object/privacy_policy.html

No Rewards Credits will accrue or be credited for those who have not enrolled in the Rewards Program by completing the application form. No retroactive credits will be made to Participants for NVIDIA Rewards Credits offered in any month prior to their enrollment in the Rewards Program.

After completing the Rewards Program application, an NVIDIA Rewards Visa debit card ("Rewards Card") will be issued to the Participant. Additional terms, conditions, and fees for the Rewards Card may apply as part of the cardholder agreement with Citi Prepaid Services. Please refer to Citi Prepaid Services's card holder agreement included with the Rewards Card. Individual Participants are responsible for maintaining current contact information with NVIDIA and Citi Prepaid Services. Lost or stolen Rewards Cards should be reported to NVIDIA and Citi Prepaid Services immediately. Participants may manage their contact information and view payment and transaction histories online at www.myeccount.com. If a Participant fails to register the Rewards Card within 28 days, NVIDIA may cancel the Rewards Card.

Employees of NVIDIA, Intuitive Group Limited, Quantum Corporation, Citi Prepaid Services, or any other third party providing goods or services related to the Rewards Program are not eligible to participate in the Rewards Program.

4) Eligible Products

Each month a list of Eligible Products and per unit incentive amounts will be listed at www.nvidia.com/rewards.

For more details refer to www.nvidia.com/rewards.

NVIDIA reserves the right to amend the Eligible Products at any time and without notice.

5) Rewards Credits

Rewards Credits will be calculated on the basis of point-of-sale data provided each month by the Partner that employs the relevant Participant. If a Participant disputes the monthly credit amount, no adjustment will be made without supporting point-of-sale data from such Partner. Participants have up to 90 days to dispute monthly credit amounts loaded on their Rewards Cards. Monthly Rewards Credits will be loaded approximately 4-6 weeks after the end of each month. All payments will be calculated and paid in US dollars.

If instructed to do so by a Partner, NVIDIA will split payment amounts between Participant sales team members or sales management according to percentages provided by the Partner. If no special payment instructions are provided, NVIDIA will credit Participants as listed on the Partner's sales report. In cases where multiple Participants are listed, the dollar amount will be split by the number of persons listed (for example, 2 names = 50% of credit amount paid to each Participant, 3 names = 33% paid to each Participant).

6) Claim Process

All Rewards Credits will be paid in US Dollars and will be subject to the conversion rate policies of the Rewards Card vendor.

NVIDIA will have no liability whatsoever in respect of the failure to correctly report any information required to earn a Rewards Credit or for any report or claim for the granting of a Rewards Credit that is not received by NVIDIA or that is mutilated, illegible or incomplete or for any other problems or technical malfunctions, software, internet or telephone failures of any kind, lost or unavailable network connections or failed computer transmissions.

Each Participant waives any and all claims of liability and hereby agrees to release, indemnify and hold NVIDIA and its shareholders, directors, officers, agents, advisors, vendors, suppliers, distributors and contractors harmless against any loss, including, without limitation, due to fraud, theft or recovery due to overdraft fees, occurring as a result of the Rewards Program or any Rewards Credits received.

IN NO EVENT SHALL NVIDIA OR ITS SUPPLIERS BE LIABLE FOR INCIDENTAL, CONSEQUENTIAL, SPECIAL OR INDIRECT DAMAGES, LOST BUSINESS PROFITS, OR LOSS, DAMAGE OR DESTRUCTION OF DATA, REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), BREACH OF WARRANTY OR OTHERWISE, EVEN IF NVIDIA AND ITS SUPPLIERS HAVE BEEN ADVISED OF THE POSSIBILITY OF THE SAME.

7) Claim Dispute

If a Participant has a reasonable belief that a Rewards Credit processed by NVIDIA is incorrect or that a Participant has not received a payment for a Reward Credit that he or she believes was earned, such Participant must send an email reasonably detailing the matter(s) in dispute to rewards@nvidia.com.

NVIDIA will investigate the claim in a reasonably timely manner and provide the claimant with a written decision with respect to the dispute. If NVIDIA determines that a Participant has not received an earned Rewards Credit or was under-paid or over-paid on a Rewards Credit, NVIDIA will make the adjustment at such time of the Participant's next regularly scheduled payment.

Notwithstanding the foregoing, NVIDIA will not investigate and/or make adjustments for claims related to this Rewards Program that are older than 60 days of the date of the close of the period in which the Rewards Credit was earned.

Each Participant acknowledges and agrees that all decisions by NVIDIA relating to eligibility, the application of the Rewards Program and the Rewards Credits are final and binding on each Participant. In the event of a dispute between NVIDIA and a Participant under this Rewards Program or these Terms and Conditions, NVIDIA has the final decision, which the Participant agrees will be final and binding on him or her.

8) Taxes

Any and all taxes of the jurisdiction of where the Participant resides, including, without limitation, federal, state or local taxes, are the responsibility of the Participant. The Participant agrees to comply with all applicable tax laws.

In the case where a Participant's Rewards Credits meet or exceed the minimum amount as required by US IRS regulations for taxable income reporting, NVIDIA will issue a form 1099 to such Participant. NVIDIA is not liable for tax penalties incurred by any individual's failure to report income earned from the Rewards Program.

9) Lost Rewards Card

If a Rewards Card is lost, stolen or destroyed, a Participant must report the missing Rewards Card to Citi Prepaid services customer service immediately by calling 1-877-326-8685 and notify NVIDIA by sending an email to the following email address: rewards@nvidia.com

Once the missing Rewards Card has been registered, the Rewards Card vendor will issue a new Rewards Card and will transfer the balance.

If a Participant fails to register the Rewards Card as lost in a timely manner and the Rewards Card is used, the monies will not be refunded.

10) Term and Termination

The Rewards Program runs from January 1, 2010 through December 31, 2010, and will be extended if NVIDIA sales objectives are achieved overall and on an individual account basis.

A Participant's participation in this Rewards Program will be terminated by NVIDIA if:

- A Partner or a Participant breaches any of these Terms and Conditions and fails to cure the breach to NVIDIA's reasonable satisfaction within 15 days of written notice from NVIDIA to the same describing the breach;
- A Participant ceases to be an employee of any Partner;
- A Partner cancels his/her company's participation in the Rewards Program;
- A Partner, in NVIDIA's sole discretion, ceases to remain eligible;
- A Partner fails to provide weekly, accurate point-of-sale reports and/or InfoNow to NVIDIA;

- In the reasonable opinion of NVIDIA, a Participant has made any fraudulent claims under this Rewards Program;
- A Participant fails to provide NVIDIA with his/her TIN/SSN, legal name, place of residence and mailing address for tax reporting purposes; or
- NVIDIA, in its sole discretion, decides to terminate all or part of this Rewards Program.
- If participation in this Rewards Program is terminated for any reason whatsoever, NVIDIA may in its sole discretion refuse to pay Rewards Credits that were accumulated prior to the date of termination.

Should any Participant cease to be employed by his or her Partner, all Rewards Credits issued under the Rewards Card of the Participant will, after 30 days from the date termination of the Participant, become void and his or her Rewards Credit account will be closed and Rewards Card will be cancelled.

11) Miscellaneous

Participants may not transfer their Rewards Credits or their Rewards Card without the prior written approval of NVIDIA, which approval shall be in NVIDIA's sole and absolute discretion.

Participants agree to comply with all applicable federal, state, provincial or local laws.

Participants acknowledge and agree that all decisions by NVIDIA relating to their eligibility, the application of the Rewards Program and the Rewards Credits are final and binding on each Participant. In the event of a dispute between NVIDIA and a Participant under this Rewards Program or these Terms and Conditions, NVIDIA has the final decision, which each Participant agrees will be final and binding on him or her.

NVIDIA reserves the right to change, modify, eliminate or terminate all or part of this Rewards Program in its sole discretion at any time. Modifications to the Rewards Program may limit the ability of certain NVIDIA distributors to be eligible under this Rewards Program. If possible, NVIDIA will use commercially reasonable efforts to provide Participants and Partners with advance notice of program cancellation or modification, but is not obligated to provide such notice. NVIDIA disclaims any responsibility or liability for Participants' lost sales or profits resulting from the cancellation or modification of this Rewards Program, or NVIDIA's failure to provide Participants with advance notice of cancellation or modification.

Neither party will act as agent for the other party for any purpose whatsoever. These Terms and Conditions and the transactions contemplated hereunder do not create a joint venture, agency, partnership, employer/employee relationship or joint enterprise of any kind.

All issues and questions concerning the construction, validity, interpretation and enforceability of these Terms and Conditions, or Participants' or Partners' rights and obligations will be governed by, and construed in accordance with, the laws of the State of Delaware, without respect to any conflict of law issues or doctrines of any jurisdiction, and the parties agree that all such issues and questions will be resolved individually, without resort to any form of class action, and exclusively by the Federal and State Courts of Santa Clara County, California. Notwithstanding the foregoing, the entire Rewards Program or parts thereof are void where prohibited by applicable law or regulation.

These Terms and Conditions constitute the complete and entire agreement between the parties relating to the subject matter hereof and supersedes all prior agreements, understandings, or representations, express or implied, between the parties relative to the subject matter hereof.

No oral explanation or oral confirmation by any of the parties will alter the meaning or interpretation of these Terms and Conditions. No amendment, modification or change hereof will be effective or binding on the parties hereto unless reduced to writing and executed by the parties.

All notices required to be provided under these Terms and Conditions will be provided (a) by Participants to **rewards@nvidia.com** and (b) by NVIDIA, to the electronic mail address provided by Participants in their registration application to the Rewards Program. Notices will be deemed received one (1) business day after being sent by email.

Section Title: Contact Us

If you have any questions please contact the NVIDIA Sales Center at **rewards@nvidia.com**